

SENATE BILL 2621

By Lamar

AN ACT to amend Tennessee Code Annotated, Section
29-39-102, relative to civil damage awards.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-39-102, is amended by adding
the following as a new subsection:

(o) Notwithstanding this section to the contrary, the amount of damages
awarded as noneconomic damages shall not exceed one million dollars (\$1,000,000) in
a health care liability action under title 29, chapter 26, arising from obstetric or maternity
negligence resulting in the death or permanent injury of a pregnant or postpartum
woman.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.